

ORDINANCE NO. A 21

TOWN OF DECATUR, MISSISSIPPI

AN ORDINANCE OF THE TOWN OF DECATUR, MISSISSIPPI, TO SET FORTH THE PURPOSES FOR WHICH THE STREETS AND SIDEWALKS ARE MAINTAINED BY THE TOWN OF DECATUR AND TO MAKE IT UNLAWFUL FOR ANY PERSON OR PERSONS WITH CERTAIN EXCEPTIONS TO PARADE, OR MARCH, OR TO SIT, KNEEL, OR RECLINE, OR TO ENGAGE IN PUBLIC SPEAKING, GROUP SHOUTING OR GROUP SINGING OR TO ASSEMBLE IN ORGANIZED GROUPS CARRYING SIGNS ON THE SIDEWALKS OR STREETS OF THE TOWN OF DECATUR, MISSISSIPPI, OR TO INTERFERE WITH THE NORMAL USE OF SIDEWALKS AND STREETS, WITHOUT WRITTEN PERMISSION OF THE MAYOR OF SAID TOWN, AND TO MAKE IT UNLAWFUL TO PLACE DEBRIS ON THE STREETS AND SIDEWALKS: AI-JD MATTERS RELATED THERETO: AND PROVIDING THAT THIS ORDINANCE BE EFFECTIVE FROM AND AFTER THE DATE OF ITS PASSAGE.

BE IT ORDAINED BY THE MAYOR AND BOARD OF ALDERMEN OF THE TOWN OF DECATUR, NEWTON COUNTY, MISSISSIPPI:

SECTION 1. PURPOSE OF STREETS AND SIDEWALKS. It is hereby declared to be the intent and purpose of the Town of Decatur, Mississippi, that it has built and maintained its streets and sidewalks for the purpose of affording pedestrians comfortable, safe, and convenient means of going from place to place in said Town for the purpose of carrying out the normal, customary and usual pursuits of every-day life. Said Town built and maintains the vehicular portions of its streets for the additional purpose of affording the public in general comfortable, safe, and convenient means of transporting persons and property from place to place in said Town, principally by vehicles, for the purpose of carrying out the normal, customary and usual pursuits of everyday life. Use of said sidewalks and streets by any person or persons for purposes other than those above set out interferes with the right of the public in general to use said sidewalks and streets for the purposes for which they were built and are maintained, and is therefore contrary to public convenience, is conducive to public disorder, is dangerous to public safety, and is calculated to cause breaches of the peace. Therefore, the provisions of this ordinance relative to the use of the sidewalks and streets in said Town shall be construed most strongly against the person violating the same.

SECTION 2. WALKS ARE UNLAWFUL CERTAIN USES OF STREETS AND SIDE. It shall be unlawful for any person or persons without the written permission of the Mayor of the Town of Decatur, Mississippi, to conduct or participate in any parade or marching on the sidewalks or streets of the Town of Decatur, Mississippi, or to walk, ride, or stand in organized

groups on said sidewalks or streets while carrying banners, placards, signs or the like, or to sit, kneel, or recline on the sidewalks or streets of said Town, or to engage in public speaking, group shouting, group singing, or any other similar distracting activity on any of the sidewalks or streets of said Town, or to assemble in groups on any sidewalk or street in such numbers or manner as to block or interfere with the customary and normal use thereof by the public unless the persons so assembled in such groups are engaged in watching a march or parade authorized by the provisions hereof; provided, however, that no written permission of the Mayor of the Town of Decatur, Mississippi, shall be required for a bona fide funeral procession en route to a cemetery, or for any parade or march by any unit of the Mississippi National Guard or the United States Army, Navy, Air Corps, or Marine Corps, or by personnel of the Police or Fire Department or said Town of Decatur, Mississippi, or auxiliary unit of the Mississippi Highway Patrol.

SECTION 3. UNLAWFUL TO THROW OR PLACE CERTAIN ARTICLES AND DEBRIS ON SIDEWALKS AND STREETS. It shall be unlawful for any person or persons to throw or place nails, tacks, bottles, rocks, bricks, paper, trash, or other debris of any kind or description on any sidewalk or street of the Town of Decatur, Mississippi.

SECTION 4. PENALTY FOR VIOLATION OF ORDINANCE. Any person or persons violating this ordinance, shall be guilty of a misdemeanor, and upon conviction, shall be fined in an amount not to exceed the sum of Two Hundred Dollars {\$200.00), or be imprisoned for a term not to exceed thirty (30) days or by both such fine and imprisonment.

SECTION 5. EFFECTIVE DATE. In order to preserve the public safety, peace, convenience, and order, it is hereby declared to be necessary that this ordinance be effective immediately, and therefore by unanimous vote of all members of the Mayor and Board of Aldermen of the Town of Decatur, Mississippi, it is ordered that this ordinance shall take effect and be in force from and after the date of its passage.

Passed and approved, this the 6th day of August, 1963.